



BUILDINGS 2025-006 BULLETIN OPERATIONAL

ISSUANCE DATE
June 9, 2025

RESCINDED

Refer to

<https://www.nyc.gov/site/buildings/code/s/adu.page> for guidance

NYC
Buildings

ISSUER: Keith L. Wen, R.A.
Assistant Commissioner
Code & Zoning Interpretation

PURPOSE: Ancillary Dwelling Unit (ADU) Approval

SUBJECT(S): Ancillary dwelling unit (ADU), Department of Environmental Protection (DEP) maps, 10-year rainfall flood risk area, coastal flood risk area

RELATED CODE/ZONING SECTIONS: ZR 12-10, LL 127 of 2024

I. OVERVIEW

The New York City Zoning Resolution (ZR) was amended to define and allow ancillary dwelling units (ADU) as part of the City of Yes Housing Opportunity text amendment, effective 12/6/2024. This Bulletin clarifies that approvals of ADUs cannot occur until DEP flood map rules and department rules are promulgated.

II. SCOPE

All ADUs subject to ZR12-10 definition for ancillary dwelling unit are covered in this Bulletin.

III. ADU APPROVALS CONTINGENT ON DEPARTMENT OF ENVIRONMENTAL PROTECTION (DEP) MAPS PROMULGATION

Ancillary dwelling units, as defined in ZR 12-10, are subject to a list of limitations (a) through (f). Specifically, item (b) states:

*in the areas included in maps promulgated by the Department of Environmental Protection (DEP) designating the **10-year rainfall flood risk area** based on 2050 sea level rise projections by the New York City Panel on Climate Change (NPCC), and the **coastal flood risk area** where there is a 1 percent chance of flooding in any year based on 2080 sea level rise projections by the NPCC, including as such maps and baseline reference dates are updated by subsequent rulemaking by DEP:*

- (1) no **ancillary dwelling units** shall be permitted in a **basement or cellar**; and*
- (2) no **backyard ancillary dwelling units** shall be permitted*

Backyard ancillary dwelling unit is defined in ZR 12-10 as follows:

*A **backyard ancillary dwelling unit** is an **ancillary dwelling unit** that is located in a **detached** or **attached building developed** after December 5, 2024, where the only **dwelling unit** in such **building** is an **ancillary dwelling unit**.*

Basement, cellar, and backyard ancillary dwelling units cannot be approved by the Department until the DEP maps described in the ZR 12-10 definition of ancillary dwelling unit are promulgated.

Pursuant to LL127 of 2024, specific requirements for the purposes of ADU approval will be promulgated by the Department.